

Court No. - 21

Case :- WRIT - C No. - 6064 of 2018

Petitioner :- Javed Malik

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Shrikrishna Shukla

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Heard learned counsel for the petitioner and Sri Chandan Agarwal, learned counsel for respondents no. 2 & 3.

By means of this petition filed under Article 226 of the Constitution of India, the petitioner has challenged the citation dated 20.01.2018 issued by the respondent no. 5 and the demand notice dated 01.12.2017 issued in his name.

Learned counsel for the petitioner contends that against the provisional assessment notice, the petitioner has filed an objection before the respondent no. 2, Executive Engineer, Pashchimanchal Vidyut Vitran Nigam Ltd., Nagriya Vidyut Vitran Khand-5, Sector-20, NOIDA, Gautam Budh Nagar but without deciding the same and without passing final order of assessment, the respondent no. 2 sent the impugned demand notice, which is totally arbitrary and illegal. Learned counsel for the petitioner further contends that the mandatory provisions of Section 126(3) of the Electricity Act, 2003 has not been followed in the present case.

In reply, learned counsel for the respondent Vidyut Vitran Nigam has tried to justify the impugned demand notice.

From a perusal of the record, we find that the provisional assessment notice issued to the petitioner does not give the basis on which he was assessed to pay Rs.10,20,304/-. This Court in the case of ***Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ, 660 (DB)*** has considered the provisions of the U.P. Electricity Supply Code, 2005 to be followed for assessment in case of theft of electricity. One of the essential requirement is that provisional notice should invite objections and also indicate a date and time for hearing of the consumer. The procedure adopted by the respondents in making demand notice is de-hors the provisions of the U.P. Electricity Supply Code, 2005 and is in gross violation of clause 6.8(b) of the said Code and, thus, the impugned demand notice issued against the petitioner and his late mother cannot be sustained.

Consequently, the writ petition is allowed. The impugned citation dated 20.01.2018 issued by the respondent no. 5 and the demand notice dated 01.12.2017 issued by the respondent no. 2 are hereby quashed. However, it shall be open to the respondents to proceed against the petitioner in accordance with law, and the procedure prescribed.

Order Date :- 20.2.2018

Dcs